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# The Bergen County Offer Playbook

*How to win a house without blindly overpaying*

By Tyler Sellers, RE/MAX Signature Homes

In Bergen County, the highest number always gets considered, but doesn't always win the house. The cleanest, smartest offer of the bunch does. I've watched buyers land homes, beating out higher bids because their offer was simply easier to say yes to, and I've watched people overpay by tens of thousands for no reason. This is the short version of how to be the first kind of buyer and not the second.

## 1. What makes an offer "clean" (it's not just price)

A listing agent is steering their seller toward the offer most likely to actually close, on time, without drama. Price gets attention. Certainty wins. Five things that make yours the easy yes:

- **A strong deposit.** A larger earnest-money deposit signals you're serious and not going to walk on a whim.
- **Financing that's proven, not promised.** A real pre-approval (not a pre-qual) from a local lender the listing agent recognizes. If you have strong cash or a big down payment, say so clearly and offer proof of funds to reassure them.
- **A closing date that fits THEIR life.** Ask what the seller needs. Flexibility on timing, or a short free rent-back if they need to stay a few weeks, can beat a higher price.
- **Few, reasonable asks.** Every extra condition and request makes you look riskier. Keep it tight.
- **Clear communication.** I tell the listing agent exactly how we will handle each step to the closing table. This includes inspection and appraisal outlines. Sellers pick the buyer they trust to get there.

## 2. Why the winning number sometimes feels "irrational"

In Bergen County, the market often moves faster than the data. If you wait for past sales (comps) to perfectly justify today's winning price, you will lose out on house after house.

A lot of times, I have to tell my buyers: "My gut says this house is going to go for X, and there aren't comps to prove it yet because the market is just that hot."

The buyers who hesitate because the number feels "irrational" usually spend months losing out on homes they love. I am not telling you to be reckless or blow your budget. But I am telling you that when you find the house you truly want, you have to be ready to pull the trigger based on what the market is doing this week, not what a spreadsheet says happened six months ago. This is exactly why you need an advisor who knows the street-level reality, so you know exactly when to stretch, and when to walk away.

## 3. Escalation clauses: win without overpaying

An escalation clause says: "I'll pay \$X, but if there's a higher legitimate offer, I'll beat it by \$\_\_\_\_, up to a maximum of \$\_\_\_\_." Used right, you pay just enough to win, not your ceiling for no reason. The rules that keep it from backfiring:

- **Set a real maximum** you're genuinely comfortable with, and hold the line there.
- **Require proof.** The clause should require the seller to show page 2 of the competing offer you're escalating against (where the price is written), so you're not bidding against a bluff.
- **Know when NOT to use one.** On some homes a strong, clean flat offer reads better than an escalation. Sometimes listing agents forbid it. That's a judgment call per house, and it's exactly where having me in your corner pays off.

#### 4. NJ Attorney Review: the safety net most buyers waste (or are not aware of)

This is a New Jersey advantage you should use to your advantage. After both sides sign the contract, there is a **3-business-day attorney review window** where your attorney (and the seller's) can review everything and/or request changes before going under contract. Once attorneys are obtained, the attorney review period can be concluded at any time after attorneys have a "meeting of the minds." It's real protection, and most buyers don't use it well.

- **Have your NJ real estate attorney lined up BEFORE you offer**, not scrambling after.
- This window is why you can make a strong, clean offer with confidence. You are not locked in the second you sign.
- Use the days to finalize your inspection plan and confirm your financing is moving.

*(This is general information, not legal advice. Always use a licensed New Jersey real estate attorney for your transaction.)*

#### The quick do / don't

- DO get fully pre-approved with a local lender before you shop seriously.
- DO ask what the seller actually wants: timing, a rent-back, fewer headaches.
- DON'T rely solely on your max price. Win on terms and price.
- DON'T waive protections you don't understand. Clean is not the same as reckless.

#### When you're ready

This is the framework. The real edge is applying it to a specific house, in a specific town, against specific competition. That's the part I do with you, for free, before you ever sign anything.

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